Connecticut

GENERAL INFORMATION

1. Connecticut **does** maintain a list of eligible surplus lines insurers (see Other Comments section #1).
2. Connecticut **does not** have a Surplus Lines Association.
3. Connecticut **does** maintain an Export List (see Other Comments section #1).
4. Connecticut **does** have an industrial insurance exemption (see Appendix C) and also recognizes the exempt commercial purchaser exemption under NRRA.
5. **Surplus lines tax**: 4% payable by broker. State of Connecticut, its agencies and municipalities, are tax exempt.
6. Connecticut **does** allow domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING RE QUIREMENTS (ALIEN INSURERS ONLY)

1. No fee.
2. **Letter of intent** regarding company’s plan to write in Connecticut.
3. Must be included on the Quarterly Listing of Alien Insurers maintained by the International Insurers Department of the NAIC.
4. **Power of Attorney Form** (on the Connecticut DOI website).
5. **Form SL-2** (on the Connecticut DOI website).

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

1. **Capital and Surplus**: $15,000,000.
2. **Letter of intent** regarding company’s plan to write in Connecticut.
3. **Certificate of Compliance** from state of domicile.
4. **Annual Statement** and quarterly reports.
5. **Power of Attorney** (on the Connecticut DOI website).
6. **Filing fee** (eligibility): $1,000.
7. **Renewal fee**: $126.

8. **Form SL-2** (on Connecticut DOI website).

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

Industrial Insurance, which is defined as "(i) an insured which procures the insurance of any risk by the use of the services of a full-time employee acting as an insurance manager or buyer on the services of a regularly and continuously retained qualified insurance consultant and (ii) whose aggregate annual premiums for insurance, including life, accident and health insurance, total at least fifty thousand dollars."

OTHER COMMENTS OR REQUIREMENTS

1. A schedule of insurers authorized to underwrite in Connecticut can be obtained from the Connecticut DOI's website at www.ct.gov/cid. Companies coded with a "K" are authorized surplus lines insurers. Connecticut's export list can be found at https://portal.ct.gov/cid/searchable-archive/financial-division/exportable-list?language=en_US.
2. The Connecticut insurance permits electronic filing of surplus lines insurers annual statements.
3. Bulletin No. FS-4SL-10 (Revised) eliminates the SL-10 Quarterly Report (Connecticut premiums by broker) from the list of requalification requirements for eligible surplus lines insurers in Connecticut.
4. Connecticut enacted legislation that revises the Connecticut surplus lines law by replacing affidavits with signed statements setting forth facts showing that the licensee and insured were unable after a diligent effort to procure, from any authorized insurer or insurers, the full amount of insurance required to protect the interest of such insured. It also requires the type of policy, and if such policy is for real property, the location of such property. The licensee shall file such signed statements in electronic format with the Commissioner on 2/15, 5/15, 8/15 and 11/15 of each year.
5. Each policy shall bear on its cover, in not less than twelve-point boldface type in capital letters, the following:

   "NOTICE

   THIS IS A SURPLUS LINES POLICY AND IS NOT PROTECTED BY THE CONNECTICUT INSURANCE GUARANTY ASSOCIATION OR SUBJECT TO REVIEW BY THE CONNECTICUT INSURANCE DEPARTMENT. IT IS IMPORTANT THAT YOU READ AND UNDERSTAND THIS POLICY."
6. Surplus lines carriers are required to use the standard fire policy form, although surplus lines commercial lines policies are permitted to define depreciation differently than the standard form requirement. However, for personal lines policies, surplus lines must adhere to the "like kind and quality" language of the standard fire form.

Contact Our Insurance + Reinsurance Team

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